



File No: EXP202310943

RESOLUTION OF TERMINATION OF THE PROCEDURE FOR

RECOGNITION

OF RESPONSIBILITY AND

VOLUNTARY PAYMENT

Of the procedure initiated by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: On April 11, 2025, the Presidency of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against AIRE NETWORKS DEL MEDITERRÁNEO, S.L. (hereinafter, AIRE NETWORKS), through the agreement that is transcribed:

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File No: EXP202310943

AGREEMENT TO INITIATE SANCTIONING PROCEEDINGS

From the actions taken by the Spanish Agency for Data Protection and based on the following

FACTS

FIRST: On July 21, 2023, a complaint was filed with the Spanish Agency for Data Protection for a possible infringement attributable to AIRE NETWORKS DEL MEDITERRÁNEO, S.L. with NIF B53704599 (hereinafter, AIRE NETWORKS).

The facts brought to the attention of this authority were:

The complainant stated that, on June 27, 2023, their telephone line was cut off.

On June 28, 2023, they went to the mobile phone store ***COMPANY.1, where they distribute ***PRODUCT.1 from the telecommunications operator AIRE NETWORKS, where they were provided with a duplicate of the SIM card.

On June 29, 2023, the complainant checked their online banking and detected the following unauthorized bank transactions:

- Two transfers of ***AMOUNT.1 euros on June 28, 2023, to a Spanish bank account.
- One transfer of ***AMOUNT.2 euros on June 28, 2023, to a Lithuanian bank account.
- One transfer of ***AMOUNT.2 euros on June 28, 2023, to a Spanish bank account.

On June 29, 2023, they filed a police report, and on July 3, 2023, they filed a complaint with the bank ***BANK.1. Subsequently, the complainant stated that they detected emails indicating a change of device associated with online banking and a change in the digital key.

Along with the document, the following was submitted:

- Copy of the email sent by the complainant to ***EMAIL.1 on July 10, 2023, with the following content:

"On June 27, 2023, I was left without a phone, I could not make calls nor had internet connection.

Subsequently, I went to the commercial agent ***COMPANY.1. The marketing company, after consulting with you via telephone, followed your instructions and changed my SIM card. On one hand, I request to know at what moment I was left without a phone and why. My agent informs me that it seems you had some security and manipulation problem with my SIM card. As a result of this, ***AMOUNT.3 euros have been stolen from my bank through unauthorized bank transfers. We undoubtedly believe that my identity has been impersonated after your security failure. Once consulted with the CNMC, I am advised to speak with you first to resolve this issue before passing the case to the CNMC. At the same time, my agent informs me that for data protection reasons, you should have contacted me to inform me of the security problem you had, especially when the data at risk has been highly sensitive data such as banking data. (...)" (sic)

- Copy of the email sent by ***EMAIL.1 to the complainant on July 11, 2023, with the following content:

"Good afternoon A.A.A., As we have communicated via telephone, we are completely willing and interested in collaborating with you and in resolving the incident. Therefore, we kindly ask you to send us a copy of the complaint filed to have all the possible information and always safeguard your interest." (sic)

- Copy of the email sent by the complainant to ***EMAIL.1 on July 11, 2023, with the following content: "We attach the complaint we filed as soon as we detected the unauthorized transfers by the account holder. As you can see, the bank movements were made when the phone failed. The complaint is a living document and is open to adding relevant information and evidence to the case."
- Copy of the email sent by ***EMAIL.1 to the complainant on July 12, 2023, with the following content: "We have forwarded the document to our legal department so they can take the necessary steps to resolve the incident, we will inform you as soon as possible."
- Copy of the email sent by ***EMAIL.2 to the complainant on July 11, 2023, with the following content: "For clarification purposes, from Aire Networks del Mediterráneo, S.L.U. we offer your telephone service

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mobile phone that you contracted through one of our mobile phone marketing agents, in your case "****EMPRESA.1". We have an online platform with Virtual Office (OV) functions. This extranet is the platform that Aire Networks makes available to its marketing agents and employees for the administrative management of telecommunications services for their end customers; this platform allows for the management of various procedures related to the telephone service such as activating or deactivating services, consumption inquiries, duplicate SIM cards, billing, etc. Last Wednesday, June 28, ***EMPRESA.1 informed us that the holder of the line ***TELÉFONO.1 is without service and that upon reviewing the line in the Virtual Office (Aire Networks extranet), it was noted that a duplicate SIM in eSIM mode had been requested for the same, which he claims he did not request. Given what could be a potential fraud, we proceeded to block said eSIM and analyze what happened. From this analysis, the records detailed below were obtained: LOG of access to the Virtual Office (Aire Networks extranet) made by the user "****NIF.1", which belongs to "****EMPRESA.1", performed one minute before the duplicate request (...). From Aire Networks, we proceeded to report the facts to the prosecutor's office as an affected party; for this reason, A.A.A., we also ask you to keep us informed of the status of your claim with your banking entity where you have requested the reversal of the transfers, as this information is very helpful for us in assessing the damage caused and thus being able to provide the prosecutor's office with the most information possible for the investigation of the crime." (sic)

- Copy of the bank statement from ***BANCO.1 where the claimant is listed as a holder and which includes four transfers labeled "TRANSFERENCIA A B.B.B.", effective on June 28, 2023, for a total of ***CANTIDAD.3 euros.
- Copy of the following transfers issued by the bank ***BANCO.1 where the claimant is listed as the sender and "B.B.B." as the beneficiary, with issuance dates of June 27, 2023:
 - ☐ Transfer to account ***CUENTA.1 at bank ***BANCO.2 for an amount of ***CANTIDAD.4 euros.
 - ☐ Transfer to account ***CUENTA.2 at bank ***BANCO.3 for an amount of ***CANTIDAD.4 euros.
 - ☐ Transfer to account ***CUENTA.2 at bank ***BANCO.3 for an amount of ***CANTIDAD.5 euros.
 - ☐ Transfer to account ***CUENTA.2 at bank ***BANCO.3 for an amount of ***CANTIDAD.5 euros.
- Copy of the police report filed on June 29, 2023, where the claimant states that he has not made four transfers from his account number ***CUENTA.3 at ***BANCO.1 for an amount of ***CANTIDAD.3 euros nor has he authorized anyone to make them, that he has not shared his passwords with anyone, and that he has approached the bank.

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to clarify the facts and have informed him that someone has accessed his application and made the transfers.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the Guarantee of Digital Rights (hereinafter, LOPDGDD), this complaint was forwarded to AIRE NETWORKS, so that it could analyze it and inform this Agency within one month of the actions taken to comply with the requirements established in the data protection regulations.

On September 5, 2023, this Agency received a response letter from AIRE NETWORKS:

"(...) We would like to inform you that the complaint filed by A.A.A. that gives rise to this request for prior information is related to the security breach that we communicated to the Spanish Data Protection Agency on June 27, 2023, at 19:23:07, with registration number ***REGISTRO.1, a communication that was subsequently expanded in a timely manner regarding the facts, the status of the breach, measures adopted, as well as its consequences and effects in terms of security.

This security breach occurred as a result of the leakage of usernames and passwords of 4 of our marketing agents (Data Processors), including the one mentioned by A.A.A. in his letter to you, ***EMPRESA.1 (N.I.F: ***NIF.1) and one of our employees. As a result of this breach, unauthorized persons gained access to their Virtual Offices (extranet) (hereinafter OV) through an illicit means of computer intrusion and interception of data transmissions. For clarification, for better understanding, the OV (extranet) is the platform that Aire Networks, as a telecommunications service provider, makes available to its Marketing Agents (including ***EMPRESA.1) for administrative management (contracting, billing, portability, cancellations, duplicates of eSIM, etc.) of the services offered to end customers.

Note: The data processing agreement on behalf of third parties (art. 28 GDPR) "Data processing agreement by ***EMPRESA.1 on behalf of Aire Networks del Mediterráneo S.L.U.", signed by ***EMPRESA.1 (Marketing Agent) was attached in the communication of the breach (with registration number ***REGISTRO.1), however, we again attach in this response excerpts from said contract in which the necessary instructions to avoid security breaches are noted, the obligation of the Marketing Agent to verify the identity of customers to carry out procedures; and the obligation of the Marketing Agent to adopt security rules and measures regarding the safeguarding and custody that guarantee the security of the data and prevent unauthorized access. You can see these excerpts from the referred contract on the following pages."

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In clause Ninth, section 9.6, of said contract, where ***EMPRESA.1 is "THE OPERATOR", the following is indicated: "In any case, the OPERATOR shall comply with the applicable regulations on the protection of personal data, adapting the technical and organizational measures that guarantee the security of the data, its conservation, and prevent its alteration, loss, or unauthorized access."

In clause Thirteenth, "CONFIDENTIALITY AND DATA PROTECTION", section 13.1 states:

"The OPERATOR and all its personnel are obliged to:

a) Use the personal data subject to processing, or those collected for its inclusion, only for the purpose of this assignment. Under no circumstances may they use the data for their own purposes. AIRE NETWORKS shall be responsible for the processing of the data of the end users to whom it provides services concerning the provision of such services, and must process the same in accordance with the provisions of the current legislation on data protection, without prejudice to the fact that the OPERATOR may also be responsible for the processing of such data of the end users for those services that the OPERATOR provides to them, for which purpose, this circumstance shall be communicated to the end users at the time of data collection so that they consent to the processing by both companies.

b) Process the data in accordance with the instructions of AIRE NETWORKS. If the OPERATOR believes that any of the instructions infringes the GDPR or any other provision regarding data protection of the Union or the Member States, the OPERATOR shall immediately inform AIRE NETWORKS (...).

d) Not communicate the data to third parties, unless it has the express authorization of AIRE NETWORKS, in legally admissible cases. THE OPERATOR may communicate the data to other data processors of the same controller, in accordance with the instructions of AIRE NETWORKS. In this case, AIRE NETWORKS shall identify, in advance and in writing, the entity to which the data must be communicated, the data to be communicated, and the security measures to be applied to proceed with the communication (...).

g) Ensure that the persons authorized to process personal data commit, expressly and in writing, to respect confidentiality and

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to comply with the corresponding security measures, of which they must be properly informed.

h) Keep available to AIRE NETWORKS the documentation proving compliance with the obligation established in the previous section.

i) Ensure the necessary training on personal data protection for the authorized persons to process personal data.”

The letter from AIRE NETWORKS received on September 5, 2023, continues to state the following:

“In accordance with what was reported in our communication to this Agency, we conducted a thorough internal investigation to ascertain the facts and, although we have not been able to identify the origin/cause of the credential leak (we continue to investigate in addition to the investigations already initiated by the Prosecutor's Office of the area of ***LOCALIDAD.1, which has more resources to identify this origin), it was determined that even though necessary and adequate technical and organizational measures had been proactively adopted before the incident to ensure the security of personal data, unauthorized access to the affected Virtual Offices (OV) (extranet) did not occur due to a lack or deficient application of the implemented preventive measures or due to the exploitation of technical vulnerabilities in our infrastructure that could be used for a direct attack, but rather through the acquisition of legitimate access credentials, duly encrypted, by one or more criminals with advanced computer knowledge through means or digital technical procedures that are difficult to detect and trace, which exceptionally allowed the aforementioned incident to occur. As a consequence, in no case has the duplication of the eSIM of A.A.A. occurred due to an error, negligence, or lack of diligence in verifying the identity of the legitimate holder by our staff, but for the reasons previously stated and evidenced in the communication.

Finally, we would like to express that, as previously indicated, as an affected party, Aire Networks filed a complaint with the Prosecutor's Office of ***LOCALIDAD.1 (...), having made ourselves available to the State Security Forces and Corps that have opened the corresponding investigation, as we do with you, to offer maximum cooperation for the investigation and clarification of these facts that have caused this cybercrime.”

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THIRD: On October 13, 2023, in accordance with Article 65 of the LOPDGDD, the complaint was admitted for processing.

FOURTH: The General Subdirectorate for Data Inspection proceeded to carry out preliminary investigative actions to clarify the facts in question, by virtue of the functions assigned to the control authorities in Article 57.1 and the powers granted in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions of Title VIII of the LOPDGDD.

As a result of the actions carried out, the following points have been noted:

On April 17, 2024, AIRE NETWORKS submitted a written response to a request from this Agency, from which the following information is extracted:

Affected persons ***CANTIDAD.6 with identification data (name, surname, nationality, date of birth, and identity document) and contact data (email, phone, postal address) and others ***CANTIDAD.7 also with billing address data.

***CANTIDAD.7 possible affected persons in which financial data (billing address) may have been viewed.

They indicate unauthorized access carried out through the access credentials of the commercial agents by cybercriminals, whereby ***CANTIDAD.8 customers have been affected due to the communication of the incident by these, having had money stolen from their bank accounts due to the illegal duplication of eSIM.

They indicate that as of the date of response to this letter, they only have knowledge of the use of ***CANTIDAD.8 eSIM, obtained illegally by the cybercriminals through which they were able to receive SMS messages intended for the ***CANTIDAD.8 holders of the ***CANTIDAD.8 affected mobile lines as part of the process of expiration of the security measures applied by the payment systems of the banking entity (***BANCO.1).

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On July 12, 2024, the affected individuals were notified via SMS with the following text: "INFO: we inform you that you have a communication regarding your mobile line. Access URL ***URL.1 (code: XXXXXX)." A screenshot of the website containing several communications is attached.

Of the ***CANTIDAD.6 clients who were affected by the security breach caused by unauthorized access to the Virtual Office of the data processor (4 Commercial Agents and 1 employee), we only have evidence that their personal data has been used by third parties in the 2 cases presented (one of which is A.A.A. with NIF ***NIF.3, whose name appears in the records of this Agency as a claimant). They indicate that they are not aware of any personal data obtained due to the breach being published on the internet or indexed by search engines, following the investigative actions carried out by their Cybersecurity team.

Regarding the reason why the implemented security measures did not prevent the security incident, they state the following:

"The implemented security measures did not prevent the security incident due to 2 fundamental causes:

1. The lack of diligence in the custody of access credentials to the ***SISTEMA.1 (extranet) by the commercial agents (4) and to the ***SISTEMA.1 by one of our employees (C.C.C. whose confidentiality contract has already been submitted to the AEPD).

2. In one of the cases, the cybercriminals had control of the email account (***EMAIL.2) where the authentication factor code was received. The illicit acquisition of these credentials is what allowed a cybercriminal to act as if they were a commercial agent."

AIRE NETWORKS attaches as Annex I to its response of April 17, 2024, the chronological evolution of events:

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June 24 and 25:

Valid and invalid access attempts in the name of the agent ***AGENTE.1 to the AIRE NETWORKS intranet were observed on June 24 and 25 from an IP address registered in ***PAÍS.1.

"The commercial agent informs us through the opening of a ticket that several (14) mobile lines have

lost service and that upon checking their records, he sees that duplicate eSIM cards have been created which he did not request. He is provided with the access logs using his credentials in which these requests were made, and the commercial agent informs us that he did not proceed to make such accesses.”

“Additional security reinforcement measures applied:

- The previously mentioned duplicate eSIMs are blocked to prevent possible illicit use.
- The commercial agent is instructed to create new SIM duplicates to restore service to the affected lines.
- The IP(s) from which unauthorized accesses were made are blocked through firewalls so that they cannot access any of our systems.
- The password for access to ***SISTEMA.1 (Aire Networks extranet) is forced to change for all users of that commercial agent.”

June 26:

On June 26, 2 valid access attempts in the name of the agent ***AGENTE.2 to the AIRE NETWORKS intranet were observed from the same IP address indicated in the previous case, which is registered in ***PAÍS.1.

“The commercial agent informs us through the opening of a ticket that several (7) mobile lines have lost service and that upon checking their records, he sees that duplicate eSIM cards have been created which he did not request. He is provided with the access logs using his credentials in which these requests were made, and the commercial agent informs us that he did not proceed to make such accesses.”

“Additional security reinforcement measures applied:

- The previously mentioned duplicate eSIMs are blocked to prevent possible illicit use.
- The commercial agent is instructed to create new SIM duplicates to restore service to the affected lines.
- The IP(s) from which unauthorized accesses were made are blocked through firewalls so that they cannot access any of our systems.
- The password for access to ***SISTEMA.1 (Aire Networks extranet) is forced to change for all users of all commercial agents.
- Access to ***SISTEMA.1 (Aire Networks extranet) is blocked for all IPs that are NOT geolocated in Spain (Attempt: “access blocked from invalid IP”).”

June 26 to 28:

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From June 26 to 28, several valid accesses were observed in the name of the agent ***EMPRESA.1 to the AIRE NETWORKS intranet from different IP addresses located in various regions of Spain.

Actions taken during these accesses:

Duplicate eSIMs (2) were created using the access credentials of the commercial agent ***EMPRESA.1 with CIF ***NIF.1 and with an email address (***EMAIL.3) that, according to the complainant, is not theirs and which was used in the different accesses in the name of the other agents mentioned earlier in this report.

“The commercial agent informs us through the opening of a ticket that several (2) mobile lines have lost service and that upon checking their records, they see that duplicate eSIM cards have been created which they did not request. Access logs with their credentials for the requests made are provided, and the commercial agent informs us that they did not proceed to make those accesses.”

“Additional security measures applied:

- The previously mentioned duplicated eSIMs are blocked to prevent possible illegal use.
- Service is restored to the previous SIM so that the holder is without service for the least amount of time possible.
- The IP(s) from which unauthorized accesses were made are blocked through firewalls to prevent

them from accessing any of our systems.

- All passwords of all users are overwritten with unvalidated passwords, and all users of all commercial agents are forced to change their passwords again.”

June 27 and 28:

On June 27 and 28, several accesses by employee C.C.C. with DNI ***NIF.2 were recorded.

Actions taken during these accesses: Duplicate eSIMs (13) were created using the access credentials of this employee.

“As a new security measure, colleagues from the support department receive an instant alert for each eSIM created by the employee (C.C.C.) and activate internal protocols to investigate what happened.”

“Additional security measures applied:

- Access to ***SISTEMA.1 for this employee is disabled, who at the time of the events is on sick leave (I.T.).
- The previously mentioned duplicated eSIMs are blocked to prevent possible illegal use.
- Service is restored to the previous SIM so that the holder is without service for the least amount of time possible.
- The IP(s) from which unauthorized accesses were made are blocked through firewalls to prevent them from accessing any of our systems.
- All passwords of all employees are overwritten with unvalidated passwords, and all employees of the company are forced to change their passwords.”

June 29, 2023:

“Additional security measures applied:

- Access to ***SISTEMA.1 for employees is limited through firewalls so that it can only be accessed from the IPs of our offices.”

June 30:

On June 30, new access attempts to OFICINA VIRTUAL and to EMPLEADOS by employee C.C.C. were recorded, which were frustrated (according to the complaint) by the implemented security measures.

“Additional security measures applied:

(...)

July 6:

“Additional security measures applied:

(...)

July 7:

“At this point, and in light of the evidence of the commission of a cybercrime, Aire Networks decides to file a complaint with the Prosecutor's Office of ***LOCALIDAD.1 to initiate the corresponding criminal investigations against whoever may have participated in the actions constituting the crime of computer intrusion and interception of computer data transmissions (197 bis CP) and the crime of fraud by electronic means (248.2 CP). (...)”

July 8:

A validated access to the virtual office in the name of ***EMPRESA.2 with CIF ***NIF.4 was observed. Duplicates of (...) eSIMs were requested using the credentials of the previously mentioned agent. Five other frustrated access attempts were observed.

On page 38/79, a report of RISK ANALYSIS AND MANAGEMENT is presented (which includes all threats that may affect the ***SISTEMA.1 platform, including “Unauthorized Access”) where, according to the change control (page 40/79), the latest modifications regarding security “Update to ENS High” dates back to April 27, 2022, and “Update of security objectives” dates back to June 1, 2002; this “Risk Analysis and Management” follows the international standard ISO/IEC 27001 according to the complaint.

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This standard specifies the necessary requirements to establish, implement, maintain, and improve an information security management system according to the Deming Cycle, or PDCA cycle (an acronym for Plan, Do, Check, Act).

In this risk analysis, the respondent indicates:

“Object

(...)”

The conclusions of the respondent regarding this risk analysis are as follows:

“After conducting interviews with the responsible personnel, analyzing the documentation provided, and performing fieldwork for the preparation of the risk analysis, it has been concluded that the current risk level existing within the scope of the ISMS is generally at a Medium-Low level.

Currently, there is an established base of controls with a maturity level of L2-L3, which reaches at least a level of L4 for those assets related to the certified scope of ENS High, which significantly reduces the inherent risk that potentially exists over the assets. These controls or safeguards are included within the area of security, contingency measures, and backup measures. (...)”

As a summary of the above, it can be concluded that the degree of implementation of the ISMS, for the defined scope, is adequate and that it will be necessary to manage the risk in those areas where the risk exceeds the level accepted by Management. The management system is maturing; however, it is true that sometimes the effort required to increase the maturity level in certain areas does not compensate for the actual degree of risk reduction.”

“... Results obtained in the Information Security Risk Analysis

Based on all that has been presented so far and after calculating the Potential Risk (Inherent), Residual Risk (Actual), and Residual Risk (Future), the results reflected in the document RG-S-03 Analysis and Risk Management (2023) have been shown to Management in the presentation of this report.”

On page 60/79 it states:

“Next, the projects to implement controls and safeguards for minimizing security risk on the treated assets are presented:

(...)”

The respondent presents a small excerpt of the risk analysis for the year 2023 (p. 78/79).

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FIFTH: According to the report collected from the AXESOR tool on February 3, 2025, the entity AIRE NETWORKS is a company established in 2002, with a turnover of 107,746,223 euros in 2023.

LEGAL GROUNDS

I

Competence

According to the powers granted by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), to each supervisory authority and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and guarantee of digital rights (hereinafter, LOPDGDD), the Presidency of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

II

Procedure

Furthermore, Article 63.2 of the LOPDGDD states: “The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures.”

In accordance with Article 64 of the LOPDGDD, and considering the characteristics of the alleged infringements committed, a sanctioning procedure is initiated.

The procedure will have a maximum duration of twelve months from the date of the initiation agreement. After this period, it will expire, and consequently, the file of actions will be archived, in accordance with the provisions of Article 64 of the LOPDGDD.

If no allegations are made against this initiation agreement within the stipulated period, it may be considered a proposal for resolution, as established in Article 64.2.f) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP).

III

Preliminary Issues

Article 4.1) of the GDPR defines “personal data” as: “any information relating to an identified or identifiable natural person (‘the data subject’); an identifiable natural person is one who can be identified, directly or indirectly, in particular by reference to an identifier such as a name, an identification number, location data, an online identifier, or to one or more factors specific to the physical, physiological, genetic, mental, economic, cultural, or social identity of that natural person.”

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indirectly, in particular by means of an identifier, such as a name, an identification number, location data, an online identifier, or one or several elements specific to the physical, physiological, genetic, mental, economic, cultural, or social identity of that person.”

Article 4.2) of the GDPR defines “processing” as: “any operation or set of operations performed on personal data or sets of personal data, whether by automated means or not, such as collection, recording, organization, structuring, storage, adaptation or alteration, retrieval, consultation, use, communication by transmission, dissemination or any other form of enabling access, alignment, combination, restriction, erasure or destruction.”

Article 4.7) of the GDPR defines the “data controller” or “controller” as: “the natural or legal person, public authority, agency, or other body which, alone or jointly with others, determines the purposes and means of the processing; where the law of the Union or of the Member States determines the purposes and means of processing, the controller or the specific criteria for its designation may be provided by the law of the Union or of the Member States.” In turn, Article 4.8) of the GDPR defines the “data processor” or “processor” as “the natural or legal person, public authority, agency, or other body which processes personal data on behalf of the controller.”

In the present case, according to the provisions of Articles 4.1 and 4.2 of the GDPR, there is a processing of personal data, since AIRE NETWORKS carries out, among other processing activities, the collection and storage of personal data of natural persons, including but not limited to: name, surname, nationality, date of birth, identification document, email address, phone number, and postal address.

AIRE NETWORKS carries out this activity in its capacity as the data controller, as it is the one who determines the purposes and means of such activity, by virtue of Article 4.7 of the GDPR. In this regard, the thirteenth clause of the “Data Processing Agreement by ***COMPANY.1 and on behalf of Aire Networks del Mediterráneo S.L.U.” states the following: “(...) AIRE NETWORKS shall be responsible for the processing of the end users' data to whom it provides services regarding the provision of such services, and must process them in accordance with the provisions of the current legislation on data protection (...).”

On the other hand, ***COMPANY.1, classified as a marketing agent, would be considered a data processor on behalf of AIRE NETWORKS.

IV

Unfulfilled Obligation. Integrity and Confidentiality

Letter f) of Article 5.1 of the GDPR states:

"1. Personal data shall be:

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f) treaties in such a way as to ensure adequate security of personal data, including protection against unauthorized or unlawful processing and against accidental loss, destruction, or damage, through the application of appropriate technical or organizational measures (“integrity and confidentiality”).

The aforementioned principle of integrity and confidentiality obliges data controllers to ensure that personal data is processed securely, preventing unauthorized access, misuse, or disclosure to unauthorized third parties. This includes implementing appropriate technical and organizational measures to protect the data against potential personal data breaches, both external and internal. These measures must be appropriate to the risks that may arise from the processing and must be reviewed and updated periodically to ensure their effectiveness.

In this regard, data controllers must ensure the integrity and confidentiality of the personal data being processed through all types of technical and organizational measures. Compliance with this provision would therefore be verified by i) the adoption and compliance with all types of technical and organizational measures aimed at ensuring the confidentiality and integrity of the personal data being processed ii) the absence of situations of loss of confidentiality or integrity of the processed personal data. Non-compliance, on the other hand, would arise from the absence of measures or non-compliance with those adopted and from a loss of confidentiality of the data being processed.

In this case, as recognized by AIRE NETWORKS in its letter dated September 5, 2023, the breach of the confidentiality principle occurs due to a security breach resulting from the leakage of access credentials to a corporate extranet called ***SISTEMA.1, which would have allowed attackers to carry out improper actions, including the issuance of a duplicate SIM card that facilitated subsequent withdrawals from the bank accounts of the affected individuals through online banking systems. The credential leak included accounts of employees and an external provider, which would indicate deficiencies in the management of access security to the system. Several marketing agents of AIRE NETWORKS would be involved in this personal data breach; in addition to ***EMPRESA.1, ***AGENTE.1, ***AGENTE.2, and ***EMPRESA.2. All of this is in accordance with the information provided in the context of the investigative actions carried out by this AEPD.

Initially, AIRE NETWORKS links the personal data breach to the following circumstances:

1. “The lack of diligence in the custody of the access credentials to the ***SISTEMA.1 (extranet) system by the marketing agents (4) and to the ***SISTEMA.1 system by one of our employees (C.C.C. whose confidentiality contract has already been submitted to the AEPD).

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1.

In one of the cases, the cybercriminals had control of the email account (***EMAIL.2) where the authentication factor code was received. The illicit acquisition of these credentials is what allowed a cybercriminal to act as if they were a marketing agent.

However, it can be stated that neither before nor after the attacks did the measures appear to be adequate. Thus, in the case of one of the breaches—from IPs located in ***COUNTRY.1—reactively, access to ***SYSTEM.1 (Aire Networks extranet) is blocked for all IPs that are not geolocated in Spain (Attempt: “access blocked from invalid IP”). That is to say, this basic security measure that would prevent access from IPs not located in Spain, given that the commercial activity and, therefore, the marketing agents of AIRE NETWORKS would be in our country, had not been adopted previously. Undoubtedly, this deficiency facilitated this personal data breach. This measure is reported concerning the attack suffered by ***AGENT.1 (June 24/25), but the next day, June 26, ***AGENT.2 also suffered unauthorized access from the same IP located in ***COUNTRY.1. In this case, the following measure was adopted: “The IP(s) from which unauthorized access has been made are blocked through firewalls

so that they cannot access any of our systems.” This would seem to indicate that the previously adopted measure of blocking access to IPs not located in Spain had not been effective.

On the other hand, in the case of ***COMPANY.1, and referring to the claim that gives rise to this procedure, it is reported that two duplicates of eSIM were made with the credentials of this marketing agent and using an email address—***EMAIL.3—that does not correspond with that of the claimant. This fact indicates that there were no measures in place to verify the adequacy of the email address with that of the actual client, which should have been available when dealing with a duplicate card, in this case, an eSIM. Additionally, it is noted that this same email address was used in different accesses in the name of other involved agents.

Another circumstance that indicates a lack of measures to prevent the loss of confidentiality of the data being processed is that, in another of the detected cases, the credentials of a worker who was on sick leave at the time of the events were used. This circumstance, which should have been taken into account for, for example, the temporary blocking of this worker's credentials, was not detected until after the attack. An attack that could have been avoided, in this specific case, if, as we say, the credentials of the worker had not continued to be valid while they were on leave and, logically, could not use them.

Finally, on June 30 and July 6, they report the implementation of a significant measure such as two-factor authentication (2FA) for access to ***SYSTEM.1 by all company employees and for access to ***SYSTEM.1 by all marketing agents. However, in the investigative actions and when reporting on the reason why the measures of

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The security measures implemented had not prevented the incident, AIRE NETWORKS indicated that: “For one of the cases, the cybercriminals had control of the email account (***EMAIL.2) where the authentication factor code was received. The illicit acquisition of such credentials is what allowed a cybercriminal to act as if they were a marketing agent.”

Therefore, it is unclear whether the measure consisting of having 2FA for access i) was implemented but failed to prevent the incident; or ii) was adopted subsequently, as claimed regarding the actions carried out on June 30 and July 6.

Consequently, the procedure that the defendant had established to access the personal data of its clients, in which there is an apparent insufficiency of adequate security measures in its systems, as acknowledged by the defendant, would have allowed a personal data breach to occur with the loss of confidentiality of the credentials, facilitating unauthorized access to the personal data of 40 individuals, including the two holders of the two affected mobile lines who experienced consequences in their bank accounts. This would constitute a violation of Article 5.1.f) of the GDPR, exposing personal data to unauthorized access with harmful consequences for the claimant and the other affected parties.

Therefore, in accordance with the evidence available at this time regarding the initiation of sanctioning proceedings, it is considered that the known facts could constitute an infringement attributable to AIRE NETWORKS for violation of the previously transcribed article.

V

Classification of the infringement of Article 5.1.f) of the GDPR and qualification for the purposes of prescription

Article 83.5 of the GDPR classifies as an administrative infringement the violation of the following articles, which will be sanctioned, in accordance with paragraph 2, with administrative fines of up to 20,000,000 EUR or, in the case of a company, an amount equivalent to a maximum of 4% of the total annual global turnover of the previous financial year, opting for the higher amount:

"a) the basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9;"

For its part, the LOPDGDD in its Article 71, Infringements, states that:

“Acts and behaviors referred to in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679, as well as those contrary to this organic law, constitute infringements.”

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For the sole purpose of the prescription period, Article 72.1 of the LOPDGDD establishes the following: "Based on what is established in Article 83.5 of Regulation (EU) 2016/679, the following infringements are considered very serious and will prescribe after three years, which involve a substantial violation of the articles mentioned therein and, in particular, the following:

a) The processing of personal data violating the principles and guarantees established in Article 5 of Regulation (EU) 2016/679."

VI

Proposal for sanction

In order to determine the administrative fine to be imposed, the provisions of Articles 83.1 and 83.2 of the GDPR must be observed, which state:

“1. Each supervisory authority shall ensure that the imposition of administrative fines under this article for the infringements of this Regulation indicated in paragraphs 4, 9, and 6 are, in each individual case, effective, proportionate, and dissuasive.

2. Administrative fines shall be imposed, depending on the circumstances of each individual case, as an additional or substitute measure to those contemplated in Article 58, paragraph 2, letters a) to h) and j). In deciding the imposition of an administrative fine and its amount in each individual case, the following shall be duly taken into account:

- a) the nature, gravity, and duration of the infringement, taking into account the nature, scope, or purpose of the processing operation in question, as well as the number of data subjects affected and the level of damage and harm suffered;
- b) the intentionality or negligence in the infringement;
- c) any measures taken by the controller or processor to mitigate the damage and harm suffered by the data subjects;
- d) the degree of responsibility of the controller or processor, taking into account the technical or organizational measures they have implemented in accordance with Articles 25 and 32;
- e) any previous infringement committed by the controller or processor;
- f) the degree of cooperation with the supervisory authority in order to remedy the infringement and mitigate the possible adverse effects of the infringement;
- g) the categories of personal data affected by the infringement;
- h) the manner in which the supervisory authority became aware of the infringement, in particular whether the controller or processor notified the infringement and, if so, to what extent;
- i) when the measures indicated in Article 58, paragraph 2, have been previously ordered against the controller or processor in relation to the same matter, compliance with such measures;
- j) adherence to codes of conduct under Article 40 or to certification mechanisms approved under Article 42, and

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k) any other aggravating or mitigating factor applicable to the circumstances of the case, such as the financial benefits obtained or the losses avoided, directly or indirectly, through the infringement.”

For its part, Article 76 “Sanctions and corrective measures” of the LOPDGDD states:

“1. The sanctions provided for in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679 shall

be applied taking into account the criteria for graduation established in paragraph 2 of the aforementioned article.

2. In accordance with the provisions of Article 83.2.k) of Regulation (EU) 2016/679, the following may also be taken into account:

- a) The ongoing nature of the infringement.
- b) The connection of the infringer's activity with the processing of personal data.
- c) The benefits obtained as a result of the commission of the infringement.
- d) The possibility that the conduct of the affected party may have induced the commission of the infringement.
- e) The existence of a merger by absorption after the commission of the infringement, which cannot be attributed to the absorbing entity.
- f) The impact on the rights of minors.
- g) Having, when not mandatory, a data protection officer.
- h) The voluntary submission by the controller or processor to alternative dispute resolution mechanisms, in cases where there are disputes between them and any interested party."

In the present case, considering the seriousness of the possible infringement, especially taking into account the consequences that its commission causes to the affected parties, the imposition of a fine would be appropriate, in addition to the adoption of measures, if applicable.

The fine imposed must be, in each individual case, effective, proportionate, and dissuasive, in accordance with the provisions of Article 83.1 of the GDPR. To ensure these principles, the business volume of AIRE NETWORKS of 107,746,223 in 2023 is considered, as a preliminary measure.

For the purpose of deciding on the imposition of an administrative fine and its amount, in accordance with the evidence available at this moment of the initiation of the sanctioning procedure, and without prejudice to what results from the instruction, it is considered appropriate to graduate the sanction to be imposed in accordance with the following circumstances, contemplated in the aforementioned provisions.

As a preliminary matter, the following circumstances are deemed to be present:

- The nature, severity, and duration of the infringement, taking into account the nature, scope, or purpose of the processing operation in question as well as the number of affected parties and the level of damage and harm they have suffered (Article 83.2, letter a), of the GDPR): The security breach in AIRE NETWORKS resulting from the leak of access credentials to the corporate extranet,

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referred to as ***SYSTEM.1, allowed the attackers to access the personal data of 40 individuals and carry out improper actions, including the issuance of a duplicate SIM card that facilitated subsequent withdrawals from the bank accounts of two affected individuals through online banking systems on June 27, 2023. It should be noted that the breach affected other parties in addition to the claimant and was facilitated by the lack of basic measures such as blocking access from foreign IPs, temporarily blocking access credentials of employees on sick leave, or the proper implementation of two-factor authentication for access by employees of the entity or commercial agents. Furthermore, it is noteworthy that some of the measures adopted did not prevent subsequent successful accesses.

- The categories of personal data affected by the infringement (Article 83.2, letter g), of the GDPR): In this regard, it should be recalled that, according to information provided by AIRE NETWORKS, the breach affected: "Affected persons ***QUANTITY.6 with identification data (name, surname, nationality, date of birth, and identity document) and contact data (email, phone, postal address) and others ***QUANTITY.7 also with payment collection account details." Let us remember that both identification numbers and financial data are considered by the European Data Protection Committee (EDPC) as personal data that must be included among those referred to in Article 83.2 g). Additionally, paragraph 57 of the Guidelines 04/2022, on the calculation of administrative fines contemplated in the GDPR, states the following:

“In regard to the requirement to take into account the categories of personal data affected [Article 83, paragraph 2, letter g), of the GDPR], the GDPR clearly highlights the types of data that deserve special protection and, therefore, a stricter response regarding fines. This refers, at a minimum, to the types of data referred to in Articles 9 and 10 of the GDPR and to data outside the scope of these articles whose dissemination causes immediate harm to the affected individual (for example, location data, data about private communications, national identification numbers, or (...)). In general, the more of these categories of data are involved or the more sensitive the data, the more weight the supervisory authority may attribute to this factor.”

Furthermore, the following aggravating factors are considered:

- The link between the infringer's activity and the processing of personal data (Article 76.2, letter b), of the LOPDGDD): The activity of AIRE NETWORKS and, more specifically, the processing in which the confidentiality breach occurred, is intrinsically linked to the processing of personal data, as its operation involves the collection, storage, management, and transmission of information from its clients. Thus, to provide telephone and internet services, the defendant must process personal data such as name, address, phone number, email, and banking details of the clients.

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The balance of the circumstances contemplated in Article 83.2 of the GDPR and Article 76.2 of the LOPDGDD, with respect to the infringement committed by violating the provisions of Article 5.1.f) of the GDPR, allows for an initial administrative fine of 100,000.00 euros to be set.

Therefore, in light of the above, by the Presidency of the Spanish Agency for Data Protection, IT IS AGREED:

FIRST: TO INITIATE SANCTIONING PROCEDURE against AIRE NETWORKS DEL MEDITERRÁNEO, S.L., with NIF B53704599, for the alleged infringement of Article 5.1.f) of the GDPR, classified under Article 83.5 of the GDPR.

SECOND: TO APPOINT R.R.R. as the instructor and S.S.S. as the secretary, indicating that they may be challenged, if applicable, in accordance with the provisions of Articles 23 and 24 of Law 40/2015, of October 1, on the Legal Regime of the Public Sector (LRJSP).

THIRD: TO INCORPORATE into the file, for evidentiary purposes, the complaint filed by the claimant and its documentation, as well as the documents obtained and generated by the General Subdirectorate of Data Inspection in the proceedings prior to the initiation of this sanctioning procedure.

FOURTH: THAT for the purposes provided in Article 64.2 b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the sanction that may correspond would be an administrative fine of 100,000.00 euros, without prejudice to what results from the instruction.

FIFTH: TO NOTIFY this agreement to AIRE NETWORKS DEL MEDITERRÁNEO, S.L., with NIF B53704599, granting a hearing period of ten working days for it to submit allegations and present any evidence it deems appropriate. In its written allegations, it must provide its NIF and the procedure number indicated in the heading of this document. In accordance with the provisions of Article 85 of the LPACAP, it may acknowledge its responsibility within the period granted for the formulation of allegations to this initiation agreement; this will entail a 20% reduction of the sanction that may be imposed in this procedure. With the application of this reduction, the sanction would be set at 80,000.00 euros, resolving the procedure with the imposition of this sanction. Likewise, it may, at any time prior to the resolution of this procedure, make voluntary payment of the proposed sanction, which will imply a 20% reduction of its amount. With the application of this reduction, the sanction would be set at 80,000.00 euros, and its payment will imply the termination of the procedure, without prejudice to the imposition of the corresponding measures.

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The reduction for voluntary payment of the sanction is cumulative with the one corresponding to the acknowledgment of responsibility, provided that this acknowledgment of responsibility is made within the period granted to submit allegations to the opening of the procedure. The voluntary payment of the amount referred to in the previous paragraph may be made at any time prior to the resolution. In this case, if both reductions were to be applied, the amount of the sanction would be set at 60,000.00 euros.

In any case, the effectiveness of either of the two mentioned reductions will be conditioned upon the express withdrawal or renunciation of any action or administrative appeal against the sanction. For these purposes, in case of opting for any of them, it must send to the General Subdirectorate of Data Inspection an express communication indicating which of the two reductions it opts for or if it is for both.

In the event that it chooses to proceed with the voluntary payment of any of the amounts indicated above (80,000.00 euros or 60,000.00 euros), it must do so by depositing it into account no. IBAN: ES00-0000-0000-0000-0000 (BIC/SWIFT Code: CAIXESBBXXX) opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A., indicating in the concept the reference number of the procedure that appears in the heading of this document and the reason for the reduction of the amount to which it is entitled. It must also send the proof of payment to the General Subdirectorate of Inspection.

Finally, it is noted that in accordance with the provisions of Article 112.1 of the LPACAP, there is no administrative appeal against this act.

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Lorenzo Cotino Hueso

The President of the Spanish Agency for Data Protection

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SECOND: On May 13, 2025, AIRE NETWORKS proceeded to pay the sanction in the amount of 60,000.00 euros, making use of the two reductions provided for in the initiation agreement transcribed above, which implies the acknowledgment of responsibility in relation to the facts referred to in the initiation agreement and its legal qualification.

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LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter, LOPDGDD), the Presidency of the Spanish Agency for Data Protection is competent to resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development, and, insofar as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Termination of the procedure

Article 85 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), under the heading "Termination in sanctioning procedures" provides as follows:

“1. Once a sanctioning procedure has been initiated, if the offender acknowledges their responsibility, the procedure may be resolved with the imposition of the appropriate sanction.
2. When the sanction is solely pecuniary or when a pecuniary sanction can be imposed alongside a non-pecuniary sanction but the latter has been justified as inappropriate, voluntary payment by the alleged responsible party at any time prior to the resolution will imply the termination of the procedure, except regarding the restoration of the altered situation or the determination of compensation for the damages caused by the commission of the infringement.
3. In both cases, when the sanction is solely pecuniary, the competent authority to resolve the procedure shall apply reductions of at least 20% on the amount of the proposed sanction, which may be cumulative. The aforementioned reductions must be specified in the notification of the initiation of the procedure, and their effectiveness will be conditioned upon the withdrawal or renunciation of any action or administrative appeal against the sanction. The percentage of reduction provided in this section may be increased by regulation.”

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III

Voluntary payment and acknowledgment of responsibility

In accordance with the provisions of the aforementioned Article 85 of the LPACAP, the notified initiation agreement informed about the possibility of acknowledging responsibility and making the voluntary payment of the proposed sanction, which would entail two cumulative reductions of 20% each. With the application of these two reductions, the sanction would be set at 60,000.00 euros, and its payment would imply the termination of the procedure, without prejudice to the imposition of the corresponding measures.

Following the notification of the aforementioned initiation agreement, AIRE NETWORKS has proceeded to acknowledge responsibility and make the voluntary payment of the sanction, availing itself of the two reductions provided. In accordance with paragraph 3 of Article 85 LPACAP, the effectiveness of the aforementioned reductions will be conditioned upon the withdrawal or renunciation of any action or administrative appeal against the sanction.

It should be noted that, according to the provisions of the LPACAP, as well as the jurisprudence of the Supreme Court in this matter, the exercise of voluntary payment by the alleged responsible party does not exempt the administration from the obligation to resolve and notify all procedures, regardless of their initiation form. Likewise, Article 88 of the aforementioned regulation establishes that the resolution that concludes the procedure will decide all issues raised by the interested parties and any others arising from it.

Therefore, in accordance with the applicable legislation and having assessed the criteria for the graduation of sanctions, the Presidency of the Spanish Agency for Data Protection RESOLVES:
FIRST: TO DECLARE the commission of the infringements and TO CONFIRM the sanctions determined in the dispositive part of the initiation agreement transcribed in this resolution.

The sum of the aforementioned amounts results in a total of 100,000.00 euros.

After AIRE NETWORKS DEL MEDITERRÁNEO, S.L. has proceeded with the prompt payment and acknowledgment of responsibility, a reduction of 40% of the aforementioned total is applied, resulting in a final amount of 60,000.00 euros.

The effectiveness of the aforementioned reductions is, in any case, conditioned upon the withdrawal or renunciation of any action or administrative appeal.

SECOND: TO DECLARE the termination of procedure EXP202310943, in accordance with the provisions of Article 85 of the LPACAP.

THIRD: TO NOTIFY this resolution to AIRE NETWORKS DEL MEDITERRÁNEO, S.L.

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: In accordance with the provisions of Article 85 of the LPACAP, which conditions the reduction for voluntary payment and acknowledgment of responsibility on the withdrawal or renunciation of any action or appeal in the administrative pathway, this resolution shall be final in the administrative pathway and fully enforceable from the date of its notification.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative pathway as stipulated by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the interested parties may file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within a period of two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

However, in accordance with the provisions of Article 90.3.a) of the LPACAP, the final resolution in the administrative pathway may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeaeprs.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency is not informed of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, the provisional suspension would be considered terminated.

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